

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

**RESPONDENT’S MOTION FOR ENLARGEMENT OF TIME TO COMPLETE
DOCUMENT PRODUCTION**

Pursuant to 46 C.F.R. § 502.102, Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) respectfully moves to enlarge the deadline—from August 14, 2025 to September 15, 2025—for COSCO to complete production of documents.¹ *See* Order Granting Joint Mot. to Modify Schedule (Doc. No. 54); Order on Respondent’s Mot. to Compel (Doc. No. 60) (updating the schedule). In support of this requested enlargement of time, COSCO states as follows:

1. Pursuant to the Presiding Officer’s July 8 Order, the parties exchanged initial discovery requests on June 18, 2025.

¹ COSCO is not requesting an extension for Complainant Samsung Electronics America, Inc. (“SEA”) to complete production of documents, but COSCO is not opposed to an equivalent extension for SEA. COSCO also is not requesting, but does not oppose, an equivalent extension of the other remaining dates of the discovery schedule, including dates for the following: Joint Status Report (currently August 18, 2025), Complete Fact Depositions (currently September 25, 2025), Expert Discovery Begins (currently September 25, 2025), Joint Status Report (currently October 1, 2025), and Discovery Completed (currently October 29, 2025). *See* Order on Respondent’s Mot. to Compel (Doc. No. 60).

2. SEA's discovery requests to COSCO included 21 interrogatories and 29 document requests seeking substantial and detailed information, including, but not limited to, thousands of alleged charges related to COSCO shipments over a period of multiple years.

3. On July 18, 2025, COSCO served responses to SEA's initial discovery requests and made an initial document production totaling over 6,000 pages in response to SEA's document requests.

4. COSCO has diligently continued to search its records and intends to produce additional non-privileged documents responsive to SEA's requests. Due to the expansive nature of SEA's requests, however, COSCO needs additional time to search its records in various locales, as well as process, review and produce responsive, non-privileged documents.

5. Additionally, due to the sensitive and confidential business information contained in documents requested, on July 23, 2025, COSCO proposed to counsel for all parties a joint motion for a protective order governing the use and disclosure of confidential business information, including a copy of a proposed order. On August 6, 2025, counsel for COSCO sent a follow-up request for a response from counsel for SEA and counsel for the Third-Party Respondents regarding COSCO's proposal for a joint motion for a protective order. *See Exhibit A.* As of the time of this filing, counsel for COSCO has not received any response from counsel for Third-Party Respondents about the proposed protective order, but SEA committed to "revert[ing] in the coming days" about the proposed protective order after counsel for SEA "discuss[es] it with SEA." *Id.* It is imperative that appropriate protection for confidential business documents be resolved before COSCO can produce documents with confidential business information.

6. Pursuant to 46 C.F.R. § 502.71(a), counsel for COSCO conferred with counsel for SEA in a good faith effort to discuss whether SEA opposes the relief sought in this motion. On August 6, 2025, counsel for COSCO informed counsel for SEA that COSCO intended to file a motion no later than August 7, 2025 (seven days in advance of August 14) to extend the date for completion of document production for COSCO from August 14 to September 15, 2025. *See* Ex. A. Counsel for COSCO also explained that “COSCO would consent to a motion by SEA for the same extension.” *Id.* In response, counsel for SEA stated, “We have advised SEA of COSCO’s request and will revert when we have a response. We emphasized your afternoon intention to file the motion and will send a chaser in the morning.” *Id.* At or about 4:45 PM ET on August 7, 2025, counsel for COSCO requested an update from counsel for SEA about whether SEA will consent to the relief requested in this motion. *See id.* Counsel for SEA responded at or about 6:19 PM ET, stating that the Presiding Officer “did not need to await SEA’s response to the motion [because SEA] takes no position on COSCO’s request.” *Id.*

7. Based on these facts, there is good cause for an enlargement of time—from August 14, 2025 to September 15, 2025—for COSCO to complete production of documents.

For the foregoing reasons, COSCO respectfully requests an order granting an extension of the deadline—from August 14, 2025 to September 15, 2025—for COSCO to complete production of documents.

DATED: August 7, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman

Eric C. Jeffrey

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW, Suite 700

Washington, DC 20005

Telephone: 202-904-2301

EJeffrey@JeffreyFenneman.com

RFenneman@JeffreyFenneman.com

Kmassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

/s/ Brian J. Whittaker

NIXON PEABODY LLP

Gordon L. Lang

Brian J. Whittaker

Martha A. Medina

799 9th Street, NW, Suite 500

Washington, DC 20001-5327

Telephone: 202-585-8000

GLang@nixonpeabody.com

BWhittaker@nixonpeabody.com

MMedina@nixonpeabody.com

Attorneys for Respondent

COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I certify that on the 7th day of August, 2025, a true and correct copy of the foregoing document, **Respondent's Motion for Enlargement of Time to Complete Document Production**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

HOLLAND & KNIGHT, LLP

Christopher R. Nolan

chris.nolan@hklaw.com

Gerald A. Morrissey, III

gerald.morrissey@hklaw.com

Allison Skopec

Allison.Skopec@hklaw.com

Kristine O. Little

kristine.little@hklaw.com

ATTORNEYS FOR THIRD-PARTY RESPONDENTS, Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung Electronics Logitech Co., Ltd.:

HOHENSTEIN & PARKINSON, LLP

James H. Hohenstein

Jim.hohenstein@hplawnyc.com

/s/ Martha Medina

Martha Medina

EXHIBIT A

From: chris.nolan@hklaw.com
Sent: Thursday, August 7, 2025 6:19 PM
To: Lang, Gordon; Allison.Skopec@hklaw.com; Whittaker, Brian; Eric C. Jeffrey; Gerald.Morrissey@hklaw.com; Kaya C. Massey; Kristine.Little@hklaw.com; Medina, Martha; jim.hohenstein@hplawny.com; Nicholas L. Webb; Rebecca A. Fenneman
Cc: Jody.Schisel-Meslin@hklaw.com; Michael.Amy@hklaw.com; sean.sheely@hklaw.com; Marisa.Marinelli@hklaw.com; Andrew.Choi@hklaw.com
Subject: RE: Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.

Dear Gordon,

Thank you for the follow-up as we were focused on getting out the production today. I was able to connect with SEA on the request and discuss the Presiding Officer's order of this morning. SEA read with interest the Order denying COSCO's motion in full and the admonishment of its sharp practice. We are also mindful of the Presiding Officer's statement that, "[b]etter communication between the parties is recommended so the parties both fully understand the discovery schedule when making motions to modify it." We commit to discussing discovery matters more fully with you, starting with the draft protective order COSCO sent. We did not review it when sent because it was during the settlement phase when SEA was committed to exploring resolution but will do so now. We will separately revert in the coming days once we discuss it with SEA.

Concerning the motion being filed this afternoon, SEA takes no position. So that the ALJ is not waiting for our response seven days from now, please include the following statement as our formal position in the meet and confer section: "COSCO advised SEA by email on August 6, 2025, that additional time would be needed to produce its documents and to advise of SEA's position by the afternoon of August 7 on the extension request. For the sake of good order, SEA requested this statement be included in the meet and confer section, so the Presiding Officer was aware that it did not need to await SEA's response to the motion as it takes no position on COSCO's request."

Best regards,
Chris

Christopher Nolan | [Holland & Knight](#)

Partner

Holland & Knight LLP

787 Seventh Avenue, 31st Floor | New York, NY 10019

Phone 212.513.3307 | 646-284-8996

chris.nolan@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

From: Lang, Gordon <GLang@nixonpeabody.com>

Sent: Thursday, August 7, 2025 4:45 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Skopec, Allison N (NYC - X73463) <Allison.Skopec@hklaw.com>; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Eric C. Jeffrey

<EJeffrey@JeffreyFenneman.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kaya C. Massey <KMassey@JeffreyFenneman.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>; Medina, Martha <mmedina@nixonpeabody.com>; jim.hohenstein@hplawny.com; Nicholas L. Webb <NWebb@JeffreyFenneman.com>; Rebecca A. Fenneman <RFenneman@JeffreyFenneman.com>
Subject: RE: Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.

[External email]

Chris,

Just checking in to see if you have gotten word from SEA. We can hold off on filing until about 6:30 if that may be helpful.

Best,

Gordon



Gordon L. Lang

Partner

glang@nixonpeabody.com

T/ +1 202.585.8319 M/ +1 202.288.2089 F/ +1 866.947.3542

Nixon Peabody LLP

799 9th Street NW, Suite 500, Washington, DC 20001-5327

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From: Lang, Gordon

Sent: Thursday, August 7, 2025 10:33 AM

To: 'chris.nolan@hklaw.com' <chris.nolan@hklaw.com>; Allison.Skopec@hklaw.com; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Eric C. Jeffrey <EJeffrey@JeffreyFenneman.com>; Gerald.Morrissey@hklaw.com; Kaya C. Massey <KMassey@JeffreyFenneman.com>; Kristine.Little@hklaw.com; Medina, Martha <mmedina@nixonpeabody.com>; jim.hohenstein@hplawny.com; Nicholas L. Webb <NWebb@JeffreyFenneman.com>; Rebecca A. Fenneman <RFenneman@JeffreyFenneman.com>

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Thanks, Chris.



Gordon L. Lang

Partner

glang@nixonpeabody.com

T/ +1 202.585.8319 M/ +1 202.288.2089 F/ +1 866.947.3542

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From: chris.nolan@hklaw.com <chris.nolan@hklaw.com>

Sent: Wednesday, August 6, 2025 10:49 PM

To: Lang, Gordon <GLang@nixonpeabody.com>; Allison.Skopec@hklaw.com; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Eric C. Jeffrey <EJeffrey@JeffreyFenneman.com>; Gerald.Morrissey@hklaw.com; Kaya C. Massey <KMassey@JeffreyFenneman.com>; Kristine.Little@hklaw.com; Medina, Martha <mmedina@nixonpeabody.com>; jim.hohenstein@hplawny.com; Nicholas L. Webb <NWebb@JeffreyFenneman.com>; Rebecca A. Fenneman <RFenneman@JeffreyFenneman.com>

Subject: RE: Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.

[EXTERNAL E-MAIL]

Be Aware of Links and Attachments

Dear Gordon,

We have advised SEA of COSCO's request and will revert when we have a response. We emphasized your afternoon intention to file the motion and will send a chaser in the morning.

Best regards, Chris

Christopher Nolan | Holland & Knight

Partner

Holland & Knight LLP

787 Seventh Avenue, 31st Floor | New York, NY 10019

Phone 212.513.3307 | 646-284-8996

chris.nolan@hklaw.com | www.hklaw.com

[Add to address book](#) | [View professional biography](#)

From: Lang, Gordon <GLang@nixonpeabody.com>

Sent: Wednesday, August 6, 2025 1:51 PM

To: Nolan, Christopher R (NYC - X73307, CHI - X66515) <chris.nolan@hklaw.com>; Skopec, Allison N (NYC - X73463) <Allison.Skopec@hklaw.com>; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Eric C. Jeffrey <EJeffrey@JeffreyFenneman.com>; Morrissey, Gerald A (WAS - X75497) <Gerald.Morrissey@hklaw.com>; Kaya C. Massey <KMassey@JeffreyFenneman.com>; Little, Kristine O (WAS - X75549) <Kristine.Little@hklaw.com>; Medina, Martha <mmedina@nixonpeabody.com>; Nicholas L. Webb <NWebb@JeffreyFenneman.com>; Rebecca A. Fenneman <RFenneman@JeffreyFenneman.com>

Cc: jim.hohenstein@hplawny.com

Subject: RE: Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd.

[External email]

Chris,

COSCO needs additional time to produce documents, and will be moving to extend the document production completion date for it from August 14 to September 15. COSCO intends to file its motion no later than tomorrow (seven days before August 14), so please let us know no later than tomorrow afternoon if SEA will consent to the extension. COSCO would consent to a motion by SEA for the same extension.

On a related note, I sent you and Jim Hohenstein a proposed motion for protective order governing the use and disclosure of confidential information on July 23, and have not received a response. Given the parties' discovery demands and the issues in this proceeding, COSCO—and I expect all parties—will be producing

confidential and sensitive commercial information; protecting that information from unnecessary disclosure is necessary and appropriate. Chris and Jim, could you please respond to COSCO's proposal?

Best regards,
Gordon



Gordon L. Lang

Partner

glang@nixonpeabody.com

T/ +1 202.585.8319 **M/** +1 202.288.2089 **F/** +1 866.947.3542

Nixon Peabody LLP

799 9th Street NW, Suite 500, Washington, DC 20001-5327

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